

SUPREME COURT OF PAKISTAN
(Appellate Jurisdiction)

PRESENT:

Justice Jamal Khan Mandokhail
Justice Irfan Saadat Khan

Criminal Petition No.635 of 2026

(On appeal against the order dated 02.04.2026 passed by the Lahore High Court, Lahore in CrI. Misc. No. 19325-B/2026)

Taimoor Khizar Hayat alias Khizar and others ...Petitioner(s)
Versus

The State through Addl. Prosecutor General of ...Respondent(s)
Punjab, Lahore and another

For the Petitioner(s) : Mr. Saqib Akram Gondal, ASC
Syed Rifaqat Hussain Shah, AOR
a/w petitioners No.2 and 3

For the State(s) : Mr. Irfan Zia, Addl. PG Pb.
Mr. Kamran Akhter, ASI/IO

Complainant : In-person

Date of Hearing : 12.05.2026

ORDER

Irfan Saadat Khan, J.- Through this order, we intend to dispose of the instant petition seeking leave to appeal against the order dated 02.04.2026 passed by the Lahore High Court, Lahore in CrI. Misc. No. 19325-B/2026, whereby the prayer of the petitioners for the grant of pre-arrest bail was declined. The case arises out of FIR No. 591/2025, registered on 05.12.2025 at 11:50 p.m. at Police Station Tanda, District Gujrat, involving allegations under Sections 337-F(v), 337-F(vi), 337-A(iii), 109, and 34 of the Pakistan Penal Code (PPC).

2. According to the contents of the FIR, the occurrence took place on 22.11.2025 at approximately 04:45 p.m. in the area of Marri Khokhran. The victim, Muhammad Qasim (son of the complainant), accompanied by Ali Husnain, had proceeded toward the *dera* of the accused persons to inquire as to the reasons why Ali Husnain and Sami Ullah had been physically assaulted by them on a previous occasion. While they were

seeking this explanation, they were intercepted by the petitioners, namely Taimoor Khizar Hayat alias Khizar, Hamayun Sikandar Hayat alias Sikandar, and Muhammad Javed alias Javed, who emerged from the *dera* armed with *dandas* (wooden sticks). The accused persons launched a sudden assault, with Javed and Sikandar delivering specific *danda* blows to the victims, causing multiple injuries to both Muhammad Qasim and the complainant, Faryad Ahmad, who had also reached the spot. It is alleged that the complainant was targeted and assaulted while attempting to intervene in the matter. Upon the raising of hue and cry, witness Rizwan Faisal arrived at the scene and acted to shield the victims from further violence, effectively preventing a continued assault, only then did the accused persons flee from the spot, while extending threats to the lives of the complainant party. The local police subsequently recorded the statement of the complainant on 05.12.2025, culminating in the registration of the formal FIR, after a delay of thirteen days.

3. The petitioners approached the learned Additional Sessions Judge, Gujrat, seeking the concession of pre-arrest bail, which was dismissed vide order dated 25.03.2026. The co-accused Akbar Zaki Hayat alias Zaki and Ehsan Ullah have already been declared innocent during the course of the investigation by the police. Aggrieved therewith, the petitioners moved pre-arrest bail application before the Lahore High Court, Lahore, which also turned down their prayer vide order dated 02.04.2026, leading to the filing of the present petition before this Court.

4. At the very outset, the learned counsel for the petitioners stated that Petitioner No. 1, Taimoor Khizar Hayat alias Khizar, has already been taken into custody by the investigating agency. He, therefore, does not press this petition to the extent of Petitioner No. 1. Hence, the petition to the extent of Petitioner No. 1 stands dismissed, as having become

infructuous/withdrawn. We will now discuss the merits of the case of Petitioners Nos. 2 and 3, namely Hamayun Sikandar Hayat alias Sikandar and Muhammad Javed alias Javed.

5. Mr. Saqib Akram Gondal, learned ASC appearing on behalf of the petitioners, contended that the petitioners are innocent and have falsely been implicated, due to deep-seated local enmity and prior litigation before the parties. He emphasized that there is an unexplained and inordinate delay of thirteen days in lodging the FIR, which points toward deliberate consultation, planning to cast the net wide and to falsely implicate the accused persons. He further stated that a counter-case/cross-version was also recorded at the instance of Petitioner No. 1 on 18.12.2025 under Sections 337-A(i), 337-L(ii), 109, 148, and 149 PPC against the complainant party, making it a case of cross-version where the question of who was the actual aggressor and who was aggressed upon remains a matter of inquiry under Section 497(2) Cr.P.C. Additionally, the learned counsel adverted to the rule of consistency, arguing that co-accused Akbar Zaki Hayat and Ehsan Ullah have already been exonerated and declared innocent by the police, yet the petitioners are being singled out despite holding similar roles. He prays that in view of these facts pre-arrest bail may be granted to the Petitioners Nos. 2 and 3.

6. On the other hand, the learned Additional Prosecutor General, along with the complainant in-person, vehemently opposed the grant of bail. They contended that the petitioners were explicitly nominated in the FIR with specific roles of causing injuries to the complainant and his young son. They argued that the medical evidence stands fully synchronized with the ocular account, confirming the deployment of blunt weapons. They maintained that the pre-arrest bail is an extraordinary remedy that cannot be claimed as a matter of right, especially when the accused party launched a planned attack on

unarmed individuals. The further stressed that though there is a delay of 13 days in lodging of the FIR, however, the complainant has duly appeared before the Medico Legal Officer on 22.11.2025 regarding the wounds caused upon him by the accused hence the delay has satisfactorily been explained. They finally prayed for the dismissal of the present petition.

7. We have heard the learned counsel for the parties at length and have perused the record with their able assistance. A tentative assessment of the material available on record reveals as under:

- **Inordinate and Unexplained Delay:** The alleged occurrence took place on 22.11.2025, whereas the matter was reported to the police and the FIR was registered on 05.12.2025. This reveals an unexplained latency of thirteen days. In matters involving physical injuries (*shajjah* or *jurh*), such a massive delay is a telling factor. Such unexplained latency indicates that the time may have been utilized to "cast the net wide, or the FIR was a result of consultation/deliberation" a practice this Court consistently deprecates as it undermines investigative purity.
- **The Rule of Consistency:** The investigating agency has already exonerated co-accused Akbar Zaki and Ehsan Ullah, following the Rule of Consistency, as articulated in *Abdul Mateen Mehboob v. State* (2026 SCMR 135), when the roles attributed to the petitioners are strikingly similar to those found innocent, the denial of bail would result in an asymmetric and unjust application of the law.
- **The Bifurcation of Truth in Cross-Versions:** We find the existence of a documented cross-version regarding the same incident. In line with the principles established in *Mst Sughran Bibi v. The State* (PLD 2018 SC 595), where two conflicting versions of

a single occurrence coexist, the determination of the "actual aggressor" is a factual complex that can only be unraveled through the recording of evidence at trial stage. This Court in the case of *Muhammad Rafique v. State and others* (PLD 2022 SC 694) has structured this principle by clarifying that while the mere existence of a cross-version does not automatically mandate bail, it becomes a case of further inquiry when a tentative assessment leaves the court genuinely unable to determine which party was the aggressor. This foundational view is supported by the rule settled in *Khizer Hayat v. The State and others* (2024 SCMR 1605), which dictates that uncovering the truth behind counter-versions requires pro and contra evidence, making the grant of bail under Section 497(2), Cr.P.C., a rule and its refusal an exception. Furthermore, as enunciated by this Court in *Naeem Sajid and others v. The State through Prosecutor General Punjab and another* (2025 SCMR 129), where an incident stems from a property or *dera* dispute and both sides advance entirely conflicting narratives, the accused cannot be singled out at this stage. We must also highlight, as mandated in *Sher Khan v. The State through A.G. KPK and another* (2025 SCMR 2059), that the specific number of injured individuals or the severity of the wounds sustained by either side carries no weight at the bail stage when evaluating counter-cases. Therefore, in our view, this inherent ambiguity brings the matter squarely within the ambit of "further inquiry" under Section 497(2) Cr.P.C.

- **Mala Fides and Victimization:** The primary purpose of affording pre-arrest bail is to safeguard citizens against the abuse of the police machinery driven by ulterior motives or malicious intent. Given the history of active litigation and rivalry between these groups, the element of *mala fides* on the part of the complainant

to cause irreparable humiliation and arrest cannot be entirely ruled out at this tentative stage. This is in complete alignment with the observations in *Khizer Hayat v. The State and others* (2024 SCMR 1605), where this Court recognized that deep-seated family or local conflicts over assets naturally heighten the possibility of false implication and malicious intent.

8. Considering the history of deep-seated local enmity, this Court is of the view that pre-arrest bail must serve as a protective bulwark against the use of criminal machinery for ulterior motives or personal vendettas. Needless to state that the observations made hereinabove are only tentative in nature and would not prejudice the cases of either of the parties before the trial Court i.e. the Complainant, State or the Accused.

9. These are the reasons for our short order dated 12.05.2026, which is reproduced below:

"We have been informed that petitioner No.1, Taimoor Khizar Hayat, has been arrested; therefore, to his extent only, the petition has become infructuous. He is at liberty to avail his remedy before the forum provided by law. However, for reasons to be recorded later, the petition, to the extent of petitioner Nos.2 and 3, namely, Hamayun Sikandar Hayat and Muhammad Javed respectively, is converted into an appeal and allowed. The appellants are granted pre-arrest bail subject to furnishing bail bonds in the sum of Rs.100,000/- each, with one surety each in the like amount to the satisfaction of the learned Trial Court concerned."